

TENTATIVE RULING

Case: **Sierra Northern Railway v. State of California, by and through the Department of Water Resources et al.**
Case No. CV2022-0479

Hearing Date: **March 13, 2026** **Department Eleven** **9:00 a.m.**

Defendants' motion for summary judgment, or alternatively, summary adjudication:

Defendants State of California, acting by and through the Department of Water Resources ("DWR"), Central Valley Flood Protection Board ("CVFPB"), and Sacramento and San Joaquin Drainage District's ("SJDD") (collectively, "State defendants") filed an untimely reply brief and supporting documents. (Code Civ. Proc., § 437c, subd. (b)(4) [a reply to the opposition must be served and filed "not less than 11 days preceding the hearing"]; see also *Steele v. Bartlett* (1941) 18 Cal.2d 573, 574.) Despite being untimely, the Court will consider State defendants' reply. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Plaintiff Sierra Northern Railway's ("Sierra Northern") request for judicial notice of exhibits E, G, P, R, T, X, AA, and HH is **GRANTED**. (Evid. Code, §§ 451, subd. (a).) Sierra Northern's request for judicial notice of exhibits A, B, F, H, J, K, L, N, O, Q, S, U, V, W, Y, Z, BB, DD, EE, FF, GG, II, JJ, and LL is **DENIED**. (Evid. Code, §§ 452, subd. (c), (d), (h), 453.) The proffered documents are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule on Sierra Northern's objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court declines to rule on State defendants' objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

State defendants' motion for summary adjudication as to the first and second causes of action (quiet title and declaratory relief) is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(2).) The Court finds that State defendants have not met their burden of showing that:

(1) Sierra Northern fails to state a cause of action for quiet title or declaratory relief. (Code Civ. Proc., § 761.020.) The necessary elements for a quiet title cause of action are: (1) a description of the property; (2) the plaintiff's title or interest and the basis; (3) the defendant is asserting an adverse claim or antagonistic property interest; (4) the date as of which the determination is sought; and (5) a prayer for determination of title. (*Ibid.*) The Court finds that Sierra Northern's complaint contains all allegations required for a quiet title cause of action. (Complaint ¶¶ 40-45.) The Court further finds that State defendants' answer admits and establishes that it has a claim that is adverse to Sierra Northern's property interest. (*Pinewood Investors v. City of Oxnard* (1982) 133 Cal.App.3d 1030,

1035 “[t]he judicial admission is not merely evidence of a fact; it is a conclusive concession of the truth of a matter which has the effect of removing it from the issues”]; Answer ¶ 43.)

(2) Sierra Northern’s quiet title and declaratory relief causes of action are barred by the statute of limitations applicable to inverse condemnation. Sierra Northern’s complaint pleads two causes of action: (1) quiet title; and (2) declaratory relief. Sierra Northern does not plead a cause of action in this case for inverse condemnation. “[T]he burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability *as alleged in the complaint*.” (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493, emphasis original, “[t]he materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment’”). This Court finds that State defendants do not meet their burden to show that the statute of limitations bars Sierra Northern’s causes of action actually pled.

(3) State defendants acquired a common law dedication, both implied-in-fact and implied-in-law, for flood control purposes across Sierra Northern’s property. This Court finds that State defendants do not provide clear and unequivocal evidence that Sierra Northern’s predecessors consented to or acquiesced to its property being used for floodwater projects. (*Friends of the Trails v. Blasius* (2000) 78 Cal.App.4th at pp. 820-821; *Friends of Hastain Trail v. Coldwater Development LLC* (2016) 1 Cal.App.5th 1013, 1027; *Cherokee Valley Farms, Inc. v. Summerville Elementary School Dist.* (1973) 30 Cal.App.3d 579, 584-585; *County of Inyo v. Given* (1920) 183 Cal. 415, 418-419; UMF 35-39.)

(4) Sierra Northern’s quiet title and declaratory relief causes of action are barred by the doctrine of laches. “A defendant must demonstrate three elements to successfully assert a laches defense: (1) delay in asserting a right or a claim; (2) the delay was not reasonable or excusable; and (3) prejudice to the party against whom laches is asserted.” (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1157.) The Court finds that State defendants fail to provide evidence of prejudice. (*Id.*, at p. 1161; *Mercury Ins. Co. v. Lara* (2019) 35 Cal.App.5th 82, 111[“the element of prejudice requires a change of position that would not have occurred absent the delay”.])

Accordingly, defendants’ motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Sierra Northern’s motion for summary adjudication

The Court declines to rule on State defendants’ objection to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court declines to rule on Sierra Northern's objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

Sierra Northern's motion for summary adjudication of State defendants' third and fourth implied dedication affirmative defenses is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(1).) When moving for summary adjudication of an affirmative defense, the moving party must show "that there is no merit to an affirmative defense as to any cause of action." (Code Civ. Proc., § 437c, subd. (f)(1).) Further, "[a] motion for summary adjudication shall be granted only if it completely disposes of...an affirmative defense." (*Ibid.*) The Court finds that Sierra Northern has not met its burden of negating essential elements of State defendants' implied dedication affirmative defenses. (*See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Specifically, Sierra Northern has not shown that it is categorically immune from implied dedication under common law and Civil Code section 1007. (*Oakland v. Burns* (1956) 46 Cal.2d 401; *Los Angeles v. San Fernando* (1975) 14 Cal.3d 199; *Wright v. Goleta Water Dist.* (1985) 174 Cal.App.3d 74.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Sierra Northern Railway et al.
Case No. CV2022-1546

Hearing Date: March 13, 2026 Department Eleven 9:00 a.m.

Cross-defendants State of California, acting by and through the Department of Water Resources (“DWR”), Central Valley Flood Protection Board (“CVFPB”), and Sacramento and San Joaquin Drainage District’s (“SJDD”) (collectively, “State defendants”) filed an untimely reply brief and supporting documents. (Code Civ. Proc., § 437c, subd. (b)(4) [a reply to the opposition must be served and filed “not less than 11 days preceding the hearing”]; see also *Steele v. Bartlett* (1941) 18 Cal.2d 573, 574.) Despite being untimely, the Court will consider State defendants’ reply. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

Cross-complainant Sierra Northern Railway’s (“Sierra Northern”) request for judicial notice of exhibits E, G, P, R, T, X, AA, and HH is **GRANTED**. (Evid. Code, §§ 451, subd. (a).) Sierra Northern’s request for judicial notice of exhibits H, J, K, L, N, O, Q, S, U, V, W, Y, Z, BB, CC, DD, EE, FF, GG, II, JJ is **DENIED**. (Evid. Code, §§ 452, subd. (c), (d), (h), 453.) The proffered documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule on Sierra Northern’s objections to evidence nos. 1 through 18 as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).) The Court **SUSTAINS** Sierra Northern’s objections to evidence nos. 19 through 21 as to the financial account numbers only. (Cal. Rules of Court, rule 1.201(a)(2).)

The Court declines to rule on State defendants’ objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

State defendants’ motion for summary adjudication as to the fourth and fifth causes of action (inverse condemnation) is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(2).) The Court finds that State defendants have met their burden of showing that: (1) the statute of limitations applies to Sierra Northern’s inverse condemnation causes of action; and (2) that Sierra Northern is not immune from the statute of limitations. (Code Civ. Proc., §§ 318, 338; *Cobb v. City of Stockton* (2011) 192 Cal.App.4th 65, 70.) However, the Court further finds that State defendants have not met their burden as to when the statute of limitations on Sierra Northern’s inverse condemnation causes of action began to accrue under the stabilization doctrine. (*Pacific Shores Property Owners Assn. v. Department of Fish & Wildlife* (2016) 244 Cal.App.4th 12, 34-37 [“[T]he touchstone for any stabilization analysis is determining when the environmental damage has made such substantial inroads into the property that the permanent nature of the taking is evident and the extent of the damage is foreseeable”]; Evid. Code, § 500; *D’Amico v. Board of Med. Examiners* (1974) 11 Cal.3d 1, 21 [moving party’s evidence must be construed strictly];